

TENTATIVE RULINGS for LAW and MOTION

August 6, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: City of Woodland v. Patel
Case No. CV2024-3350

Hearing Date: August 6, 2026 **Department Fourteen** **9:00 a.m.**

Motion for judgment on the pleadings:

Plaintiff City of Woodland's evidentiary objections to the declarations of Craig A. Hansen and Wing C. Dam are **SUSTAINED**. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999 ["Presentation of extrinsic evidence is...not proper on a motion for judgment on the pleadings"].)

Defendants Shadow Oaks Hospitality, Inc. and Bharat Jivan Patel's request for judicial notice in support of defendants' reply is **DENIED**. (Evid. Code, §§ 452, 453.) "The general rule of motion practice...is that new evidence is not permitted with reply papers." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.)

Defendants' motion for judgment on the pleadings is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(i).) Based on the complaint and matters judicially noticed, defendants have not shown that, if applicable, plaintiff failed to exhaust administrative remedies prior to filing the complaint. (See *Cloud, supra*, 67 Cal.App.4th at p. 999.) The Court does not reach whether Woodland Municipal Code section 3.12.090 applies under the circumstances.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Discovery motion:

Plaintiff City of Woodland's motion to compel further responses to requests for production of documents, requests for admissions, and special interrogatories is **GRANTED IN PART**. (Code Civ. Proc., §§ 2031.320, subd. (a), 2033.290, 2030.300, subd. (a).) First, defendant Shadow Oaks Hospitality does not provide legal authority that this Court can consider its lack of jurisdiction argument in response to a discovery motion. (See Opposition, pp. 3-4.) Second, as to requests for production nos. 1 and 6-12, defendant has failed to produce responsive documents, despite its statements of compliance. (Code Civ. Proc., § 2031.320, subd. (a); see also Hickey decl., ¶¶ 5, 9-13.) Third, as to requests for production nos. 2-5, plaintiff has shown good cause for the requests, and defendant has failed to justify its objections. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98; *Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220-221; see also Hickey decl., ¶ 8, Exhibit G.) Fourth, as to request for admissions nos. 5 and 8, defendant's responses do not comply with Code of Civil Procedure section 2033.220(c). (Code Civ. Proc., § 2033.290, subd. (a).) Finally, as to special

interrogatories nos. 3-10, defendant does not justify its objections and/or incomplete answers. (See *Kirkland*, *supra*, 95 Cal.App.4th at p. 98.)

Therefore, defendant is **DIRECTED** to serve further responses and responsive documents by **September 8, 2026**. The Court declines to order responses without objections. (See Plaintiff's proposed order [lodged April 20, 2026], p. 2; Holmes decl., ¶¶ 5-7, Exhibit A.)

Plaintiff's request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2031.320, subd. (b), 2030.310, subd. (d), 2030.300, subd. (d).) The notice of motion did not "identify every person, party, and attorney against whom the sanction is sought." (Code Civ. Proc., § 2023.040; see Notice of Motion, p. 2.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **IOU Central Inc. v. Madaki**
 Case No. CV2026-1234

Hearing Date: **August 6, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, defendants Woodland Care Pharmacy and Medical Supply LLC and Haruna Madaki's demurrer to plaintiff's complaint is **CONTINUED** to **October 1, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: **Kalmykov v. Shell Point Mortgage Servicing**
Case No. CV2023-0547

Hearing Date: **August 6, 2026** **Department Thirteen** **9:00 a.m.**

Motion to continue trial:

Plaintiff Nikolay Kalmykov's motion to continue trial date and pretrial deadlines is **DENIED**. (Cal. Rules of Court, rule 3.1332.) Plaintiff has not made an affirmative showing of good cause requiring the continuance. (Cal. Rules of Court, rule 3.1332(a), (c).) Specifically, plaintiff has not established his "excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts." (Cal. Rules of Court, rule 3.1332(c)(6).) While plaintiff asserts that he served discovery requests on defendant, he does not state when the discovery was served, why it was not served earlier, and why it is essential to this case. (*Ibid.*; see Kalmykov decl., ¶¶ 2-4 & 12, Exhibit A.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Trial readiness conference:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: **Rojas v. Yolo Eats, Inc.**
 Case No. CV2024-1256

Hearing Date: **August 6, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiff Kaitlyn Rojas' unopposed motion for final approval of class action and PAGA settlement and motion for attorneys' fees, costs, and class representative enhancement award. (Cal. Rules of Court, rule 3.769(e), (g).)